COMPLAINTS PROCEDURE

Oxford Motorsport Society

Adopted by the Committee under paragraph 28 of the Constitution

This procedure sets out how the Oxford Motorsport Society ("the Club") will deal with complaints. It covers (i) complaints that a member has failed to act in accordance with the Club's Code of Conduct or the University's Policy and Procedure on Harassment; and (ii) complaints about activities undertaken by the Club or decisions made by its committee. It operates alongside the University's non-academic misconduct procedures and Harassment Procedure.

This procedure must NOT be used for allegations of sexual misconduct, sexual harassment or sexual violence. Any student affected should be directed to the University's Student Welfare and Support Services and the Sexual Harassment and Violence Support Service, and the committee must seek advice from the Proctors' Office. Where a criminal offence may have occurred, the matter should be reported to the police.

1. **Definitions.** In this procedure, the **"Complainant"** is the person making a complaint and the **"Respondent"** is the member, committee member or committee against whom the complaint is made.

2. **Principles.** Complaints will be handled fairly, promptly and, so far as possible, in confidence. Personal data will be processed in accordance with the Data Protection Act 2018. No person will be victimised for raising a complaint in good faith. Information will be shared only with those who need it to handle the complaint.

3. **Informal resolution.** Many concerns can be resolved quickly and informally. A member with a concern is encouraged, where they feel comfortable doing so, to raise it directly with the person concerned or with any committee member. The Welfare Officer (if appointed) or the Senior Member may assist.

4. **Formal complaint.** Where informal resolution is not appropriate or has not succeeded, a formal complaint may be made as follows:

   (a) the complaint should be made in writing to the Secretary;

   (b) if the complaint concerns the Secretary, a member of the committee, or the committee as a whole, it should instead be made to another Office Holder or to the Senior Member;

   (c) the complaint will be acknowledged within seven days, and the committee (excluding any person who is the subject of, or has a conflict of interest in, the complaint) will consider it, consulting the Senior Member as appropriate;

   (d) the Respondent will be told the substance of the complaint and given a fair opportunity to respond before any decision is made; and

   (e) a reasoned decision will normally be given in writing within twenty-one days. Possible outcomes include no further action, an apology, a warning, conditions on continued membership, or suspension or removal from membership in accordance with paragraph 7 of the Constitution.

5. **Role of the Senior Member.** The Senior Member is available to advise the committee and, under paragraph 23 of the Constitution, to seek to settle preliminary disputes between the committee and members.

6. **Referral and appeal.** If a complaint cannot be resolved within the Club, or if the Complainant or Respondent is dissatisfied with the outcome, the matter may be

referred to the Proctors through the Clubs Office. The University's non-academic misconduct procedures may apply, and the decision of the Proctors is final.

7. **Complaints about the committee.** Complaints about Club activities or decisions of the committee should be made in writing to the committee; where they concern the committee as a whole, they should be made to the Senior Member, and thereafter may be referred to the Proctors as in paragraph 6.

8. **Records.** A confidential record of formal complaints and their outcomes will be kept in accordance with the Data Protection Act 2018 and will be made available to the Proctors on request.

Date adopted: _____ Reviewed at each annual re-registration.